

Court No. - 4

Case :- WRIT - C No. - 6614 of 2022

Petitioner :- Manisha Tiwari

Respondent :- District Magistrate Lucknow And 3 Others

Counsel for Petitioner :- Durgendra Kumar Tiwari

Counsel for Respondent :- C.S.C.,Amit Kumar Dwivedi

Hon'ble Attau Rahman Masoodi,J.

Hon'ble Om Prakash Shukla,J.

Heard learned counsel for the petitioner and Sri Amit Kumar Dwivedi, who has put in appearance on behalf of opposite party Nos. 3 & 4.

The petitioner is a resident of house No.B-163, Harihar Nagar, Indira Nagar, Lucknow and has applied for an electricity connection. The petitioner duly fulfilled the requisite formality, however, the estimate made for the supply of electricity to the tune of Rs.51,659/-, which has been quantified, has not been paid by the petitioner. The petitioner has stated that her financial conditions are precarious and she cannot deposit the entire amount in one go. The petitioner has thus prayed for payment of the aforesaid amount in installments.

Learned counsel for the petitioner has also drawn our attention towards clause 4.9k of Electricity Supply Code, 2005, according to which it is open for a consumer to seek necessary permission for payment of such an amount in easy installment.

Learned counsel appearing for opposite parties No. 3 & 4 does not have any objection, if, a direction is issued to the competent authority for allowing the petitioner to make a representation in this regard and the same is considered by the said authority sympathetically and installments are accordingly allowed.

Accordingly, the competent authority is hereby directed to consider the petitioner's representation seeking permission for payment of the aforesaid amount in easy installment.

It is expected that the petitioner shall be permitted to deposit the said amount in four easy installments.

On deposit of first installment, opposite parties shall ensure that the electricity supply is ensure to the petitioner without any hindrance.

The writ petition is accordingly, **disposed of.**

Order Date :- 23.9.2022/Reena